

Effective Date Correction Playbook

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Why effective dates matter

Your effective date determines how much retro pay you receive. A correction from a date 18 months later to the right date can be worth tens of thousands of dollars.

Example: A 70% rating with spouse pays roughly \$1,908/mo. An 18-month effective date correction = ~\$34,344 in retro.

The general rule

38 CFR § 3.400 — *The effective date is the **later of**:*

- 1. The date VA received your claim, OR*
- 2. The date entitlement arose (when your symptoms reached the rated severity)*

Sounds simple. The complications:

- "Date claim received" can be moved earlier by an Intent to File (ITF)
 - "Date entitlement arose" can be earlier than your claim, especially for increases
 - Each claim type (original, increase, supplemental, HLR) has variations
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The Intent to File (ITF) — your best friend

38 CFR § 3.155 — An ITF preserves your effective date for **1 year** while you gather evidence and complete the formal claim.

Three ways to file an ITF

- 1. VA Form 21-0966** — written ITF

2. **Online** at VA.gov — saves a draft as ITF
3. **Through a VSO** — they file an ITF on your behalf (very common)

TIP: ITFs filed by an accredited VSO count from the date the VSO received your request, not the date they sent it to VA. If your VSO took 30 days to file, those 30 days count.

Real-world example

- ITF filed by VSO on **2/10/2025**
- Formal claim (Form 21-526EZ) submitted **8/15/2025**
- Effective date: **2/10/2025** (ITF preserved)

If you file the formal claim more than 1 year after the ITF, the ITF expires and the effective date reverts to the formal claim date.

Increase rating effective dates

38 CFR § 3.400(o)(2) — If your condition worsened to the higher level **within 1 year before the date of claim**, the effective date can be the date your condition worsened (the "facts-found date"), not the date of claim.

How to prove a facts-found date

Submit evidence showing when symptoms reached the higher rating level:

- Treatment records dated before your claim showing worsening
- Buddy/spouse statements describing onset of new symptoms
- Hospital admission records, ER visits
- Lay statements about functional decline

When effective dates get fought

The most common effective date errors VA makes:

1. **Ignoring an ITF** — VSO ITFs sometimes don't appear in VA's system; you may need to provide proof
2. **Using the formal claim date when an ITF is on file**

3. Using the date of the rating decision instead of the date entitlement arose
 4. Treating a claim as new when it should have been a continuation
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How to dispute an effective date

If within 1 year of the decision: HLR or Supplemental

- **HLR (20-0996):** if VA had the ITF/evidence in file but ignored it (legal/factual error)
- **Supplemental (20-0995):** if you have new evidence of the ITF or facts-found date

If more than 1 year: CUE

Clear and Unmistakable Error (CUE) is a high bar. You're saying VA's prior decision contains an error so clear that "any reasonable adjudicator" would have decided differently. Consult an accredited rep.

Sample personal statement — disputing an effective date

Statement in Support of Effective Date Correction

[Your Name], File Number [X]

I am requesting correction of the effective date assigned for [CONDITION] from [WRONG DATE] to [CORRECT DATE].

Background

On [DATE], I filed an Intent to File (ITF) with [VSO Name] of [Organization]. The ITF was received by VA on or about [DATE]. (See Exhibit A — copy of ITF receipt / VSO confirmation letter.)

On [DATE], I filed a formal claim (Form 21-526EZ) for [CONDITION], well within the one-year window from the ITF.

Legal basis

Under 38 CFR § 3.155, an Intent to File preserves the effective date for one year. The effective date for any subsequent claim filed within that window relates back to the ITF date.

Requested action

Correct the effective date for [CONDITION] from [WRONG DATE] to [CORRECT DATE], and pay retroactive compensation accordingly.

Respectfully submitted, [Signature, date]

Common pitfalls

1. **Throwing away ITF receipts.** Keep VSO confirmations forever.
2. **Assuming VA "knows" about an ITF.** They don't, until you prove it.
3. **Letting ITFs expire.** Set a calendar reminder for day 350 of the ITF window.
4. **Conflating effective date with award date.** Effective date = when entitlement begins.
Award date = when VA decides. Retro = the gap times your monthly rate.

Quick reference

Claim type	Default effective date rule
Original	Later of (date received, date entitlement arose)
Increase	Date claim received — OR facts-found date if within 1 year prior
Supplemental w/in 1 year	Original prior claim date preserved
Supplemental after 1 year	Date of new claim
HLR	Original prior claim date preserved
CUE grant	Date error occurred (potentially years back)

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